

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FIRST SECTION

DECISION

AS TO THE ADMISSIBILITY OF

Application no. 59489/00
by UMO Ilinden – PIRIN and Others
against Bulgaria

The European Court of Human Rights (First Section), sitting on 9 September 2004 as a Chamber composed of:

Mr C.L. ROZAKIS, *President*,
Mr P. LORENZEN,
Mrs F. TULKENS,
Mrs N. VAJIĆ,
Mrs S. BOTOUCHAROVA,
Mr A. KOVLER,
Mr V. ZAGREBELSKY, *judges*,
and Mr S. NIELSEN, *Section Registrar*,

Having regard to the above application lodged on 3 July 2000,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicants,

Having deliberated, decides as follows:

THE FACTS

The first applicant, the United Macedonian Organisation Ilinden – Party for Economic Development and Integration of the Population ("UMO Ilinden – PIRIN" or "the applicant party"), was a political party founded on 28 February 1998 and based in south-west Bulgaria (in an area known as the Pirin region or the geographic region of Pirin Macedonia). The applicant party was declared unconstitutional by the Constitutional Court on 29 February 2000. The second applicant, Mr Ivan Iliev Singartiyski, a Bulgarian national born in 1953 and living in Mosomishte, was its chairman. The third applicant, Mr Ivan Georgiev Bikov, a Bulgarian national born in 1938 and living in Samuilovo, was its vice-chairman. The fourth applicant, Mr Atanas Mihaylov Orozov, a Bulgarian national born in 1948 and living in Razlog, was its secretary.

The applicants are represented before the Court by Mr Y. Grozev, a lawyer practising in Sofia. The respondent Government are represented by Ms M. Kotzeva, co-agent, of the Ministry of Justice.

A. The circumstances of the case

The facts of the case, as submitted by the parties, may be summarised as follows.

1. Background

Between 1990 and 1998 more than fifteen organisations of persons declaring to have Macedonian ethnic consciousness were formed and were active on the territory of Bulgaria. Apparently most of these never sought to be registered.

One of them, the United Macedonian Organisation Ilinden ("UMO Ilinden"), was founded on 14 April 1990. Its aims, according to its articles of association and programme, were to "unite all Macedonians in Bulgaria on a regional and cultural basis" and to achieve "the recognition of the Macedonian minority in Bulgaria". The same year it applied for, but was refused, registration. In their judgments of July and November 1990 and March 1991 the courts found that the association's aims were directed against the unity of the nation, that it advocated national and ethnic hatred, and that it was dangerous for the territorial integrity of Bulgaria. The aims of the association included the "political development of Macedonia" and the "united, independent Macedonian State" (see S*tankov and the United Macedonian Organisation Ilinden v. Bulgaria*, nos. 29221/95 and 29225/95, §§ 10-14, ECHR 2001-IX).

UMO Ilinden made an additional attempt to register in 1998-99 (see *The United Macedonian Organisation Ilinden and Others v. Bulgaria* (dec.), no. 59491/00, 9 September 2004). Registration was again refused.

2. Formation of the applicant party

The applicant party was founded on 28 February 1998 by fifty-one persons. Some of its founders had previously been members of the UMO Ilinden association. It applied for registration at the Sofia City Court.

In the course of the proceedings the public prosecutor, who participated *ex officio*, maintained that the applicant party's aims were contrary to Article 44 § 2 of the Constitution and that registration should therefore be refused. In connection with these remarks the founders decided to amend one point of the party's constitution. They did so at a meeting on 14 November 1998 and presented the amended copy to the court.

By a judgment of 12 February 1999, published in the State Gazette on 23 February 1999, the Sofia City Court registered the applicant party, holding that its aims, as set out in its constitution and programme, were not contrary to the proscriptions of Article 44 § 2 of the Constitution and of section 3(2) of the Political Parties Act of 1990.

3. Dissolution of the applicant party

(a) Proceedings before the Constitutional Court

On 4 March 1999 sixty-one members of the Bulgarian parliament requested the Constitutional Court to declare the applicant party unconstitutional, more specifically, contrary to Articles 11 § 4 and 44 § 2 of the Constitution of 1991. They asserted that the party had in fact been formed in 1990 and was in fact a successor of the "illegal" UMO Ilinden. They further argued that the party's ultimate aim was the formation of an independent Macedonian state through the secession of Pirin Macedonia from Bulgaria. The party's members and leaders had on numerous occasions declared such goals. The party's original constitution, amended in the course of the proceedings before the Sofia City Court, contained language to the effect that it would "protect the interests of the population of Pirin Macedonia [and] of the refugees from Aegean and Vardar Macedonia[1]". This indicated its separatist character. Also, the party's chairman, Mr Singartiyski (the second applicant), had sent letters to the state institutions and media of a neighbouring country, urging them to look for a "Macedonian minority" in Bulgaria. It was true that the party's public influence was negligible, but its registration had created a dangerous precedent.

On 9 March 1999 the Constitutional Court declared the request admissible and invited the applicant party, the National Assembly, the Council of Ministers, the Ministers of Internal Affairs and of Justice, the

1. Aegean Macedonia is a geographical region in the north of Greece; Vardar Macedonia is a geographical region on the territory of the former Yugoslav Republic of Macedonia named after the Vardar river.

Prosecutor-General, the Bulgarian Helsinki Committee and the Bulgarian Centre for Human Rights to submit written observations within thirty days.

The second applicant, Mr Singartiyski, acting in his capacity of chairman of the applicant party, filed written observations in which he argued that UMO Ilinden – PIRIN was a democratic party and its activities were fully compliant with the Constitution and the laws of the country.

In a joint memorial the Bulgarian Helsinki Committee and the Bulgarian Centre for Human Rights argued against the applicant party's dissolution. They pointed out that it had existed for only a short time and that it was therefore too early to judge whether its activity rendered it unconstitutional. The few public statements of its leaders and members could not lead to a firm conclusion in that respect. On the contrary, the applicant party had never questioned the country's territorial integrity. The memorial maintained that a measure as radical as dissolution would be justified only if there was an immediate and direct threat to national security or public order, which was clearly not the case.

A hearing was held on 25 November 1999 at which the Constitutional Court heard oral argument. At the hearing the Ministry of Internal Affairs presented as evidence a letter written by Mr Kiril Ivanov, former chairman of the applicant party, and sent by him on the party's behalf to the Open Society Institute in Budapest. In the letter Mr Ivanov had stated that "Pirin Macedonia ha[d] to gain cultural, political and economic autonomy" and that "the human rights of Macedonians in Pirin Macedonia [stood] higher than Bulgaria's national sovereignty".

That letter was discussed at a meeting of the National Executive Council of the applicant party held on 28 November 1999. The Council distanced itself from the letter and expressed the opinion that Mr Ivanov's actions had been contrary to the party's constitution and aims. The Council recommended that Mr Ivanov be expelled from the party. The applicant party informed the Constitutional Court of this resolution.

(b) The Constitutional Court's judgment

The Constitutional Court gave judgment on 29 February 2000, declaring the applicant party unconstitutional (реш. № 1 от 29 февруари 2000 г. по конституционно дело № 3 от 1999 г., обн., ДВ брой 18 от 7 март 2000 г.).

The court started by observing that the constitutionality of a party should mainly be assessed on the basis of its activity. It was not sufficient to make the assessment solely on the basis of the statements contained in its constitution and programme. The constitution of a party could be just a façade for facilitating its registration; this is why it was necessary to verify the party's real activities. It could not be ruled out that the documents could conceal objectives, intentions and activities that were different from those which were publicly proclaimed. It was therefore necessary to compare their

content with the party's practical actions. The European Court of Human Rights had ruled on this issue in its *United Communist Party of Turkey and Others v. Turkey* judgment of 30 January 1998 (*Reports of Judgments and Decisions* 1998-I).

The court went on to hold that although the applicant party had been registered in February 1999 on the basis of a constitution which had been adopted at a founding meeting on 28 February 1998, it was not a novel organisation. It had a predecessor and was continuing its activities. The court described the founding of UMO Ilinden in 1990 and its unsuccessful attempt to register in 1990-91. It further found that UMO Ilinden had split in 1994, the radicals remaining on one side and the more moderate members forming two separate organisations: UMO Ilinden – Democratic Action and UMO Ilinden – Blagoevgrad. Most of the applicant party's current leaders, including the second applicant and Mr Kiril Ivanov, had been members of these two organisations. Thus, it could be concluded that the applicant party was not a novel organisation but had a close connection with the former unregistered association UMO Ilinden. The two had almost the same name and the same persons were their leaders and members. Moreover, the second applicant and other leaders of the applicant party had intimated in newspaper interviews that they considered the applicant party and UMO Ilinden as one and the same organisation. The court therefore concluded that the activities of the applicant party's predecessor organisations should be taken into account for purpose of assessing its constitutionality.

The court then turned to the specific grounds invoked by the sixty-one members of parliament for declaring the applicant party unconstitutional.

With regard to its alleged incompatibility with Article 11 § 4 of the Constitution, the court found that there was no Macedonian ethnos in Bulgaria. Therefore, it could not be said that the applicant party was based on ethnic origin. Moreover, it was clear from its constitution that every Bulgarian citizen could become its member. This part of the request was therefore unfounded.

As to the other ground for declaring the applicant party unconstitutional, incompatibility with Article 44 § 2 of the Constitution, the court pointed to a number of specific instances in which members of the applicant party and its predecessor organisations had engaged in conduct directed against the unity of the nation:

– A meeting on 20 April 1990 at the Rozhen Monastery. At this meeting a declaration had been adopted, demanding full cultural, economic and political autonomy of the Pirin region; withdrawal of the Bulgarian troops, referred to as "occupational"; dissolution of all Bulgarian political parties and organisations; the establishment of a Macedonian orthodox church independent of the Bulgarian orthodox church, etc.

– A commemorative rally on 1 August 1993 in the area Samuilova krepost. A brochure announcing the event had featured a map of

Macedonia, which had included territories that are part of Bulgaria (the Pirin region) and Greece, and in the middle of the map there had been depicted the sixteen-ray Macedonian star symbol[1].

– In 1994 the newspaper *Skornuvane*, published by UMO Ilinden, had printed a map of Macedonia featuring territories belonging to Bulgaria and Greece.

– On 2 August 1997 the faction of UMO Ilinden lead by Mr Kiril Ivanov had issued a memorandum according to which in Bulgaria there existed "modern-day genocide, discrimination and assimilation" and the Macedonians there were deprived of the right to honour the memory of the thousands of fighters who had fallen in the struggle for "free and independent Macedonia" – apparently a reference to distant historical events. That memorandum had been circulated abroad.

– Immediately after the applicant party's founding, the newspaper *New Macedonia* in it issue of 21-22 March 1998 had reprinted an interview of Mr Ivan Gargavelov, the party's secretary, in which he had allegedly insulted the Bulgarian nation and had attacked representatives of the Bulgarian authorities. He had treated the Pirin region as part of Macedonia and had indicated that the unique folklore, culture, traditions and individuality of the Macedonian people had been destroyed, its history and customs had been stolen, and its national identity had been denied.

– In February 1999 Mr Ivan Gargavelov had been present as a representative of UMO Ilinden at a press conference of the Conservative Party held in Skopje. When asked why he spoke Bulgarian, he had replied: "This is not Bulgarian, but Macedonian, and this is the language spoken in Bulgaria, whereas the Bulgarians there speak Tatar language".

– In an interview for the *Macedonian Sun* newspaper of 27 March 1998 another of the party's leaders, Mr Anguel Bezev, deputy chairman, had accused Bulgaria of genocide and lack of democracy, and had spoken of a "Pirin part of Macedonia", as if of a non-Bulgarian territory. He had obliviously agreed with its secession from Bulgaria but had thought that it was not the opportune time and had concluded: "I believe time works for us".

– A declaration of UMO Ilinden, signed by its chairman, Mr Singartiyski (the second applicant), and its secretary, Mr Ivan Gargavelov, had been published in the issue of *Macedonian Sun* of 10 April 1998. In that declaration the Pirin region had been referred to as "a part of Macedonia". The organisation had proclaimed that it was a defender of "the Macedonians in Pirin Macedonia and Bulgaria", that is, a distinction had been drawn between Pirin Macedonia and Bulgaria.

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1. In 1991 the former Yugoslav Republic of Macedonia designated the yellow sixteen-ray star symbol (the Vergina Sun, generally believed to belong to king Philip II of Macedonia) as its national symbol, and displayed it on its flag. It was removed from the country's flag in 1995.

– The issue of the newspaper *Dnevnik* of 16 and 20 February 1999 had contained publications relating to a letter issued by the applicant party and to a press conference given by its chairman, Mr Ivan Singartiyski, in Skopje. In them it had been indicated that "Bulgaria even [then] continue[d] to misappropriate Macedonia's cultural heritage" and that "Bulgaria [had] incited Macedonia's partition".

– the applicant party had, together with several foreign organisations, participated in the issuing of a Declaration for the protection of the Macedonian people's national distinctiveness, addressed to the former Yugoslav Republic of Macedonia's Government. Point five of the declaration had requested an affirmation to the effect that part of the Macedonian people lived on Macedonian territory given in temporary trusteeship to Albania, Bulgaria and Greece by the 1913 treaty of Bucharest[1]. It had been once again proclaimed that this part of Bulgaria's territory was only temporarily under Bulgarian administration.

– On 8 October 1999 Mr Atanas Manushkin, running for mayor of Razlog on the applicant party's ticket, had declared at a press conference: "In several statements made by the Bulgarian government it was said that if the [United Democratic Forces[2]] do not win the elections in Razlog, no funding will be forthcoming to the region. Thus, if we win, the government gives us the right to freely choose and declare that this is a free territory, which may decide subsequently where to turn to."

– In an interview of 20 October 1999 the applicant party's chairman, Mr Singartiyski (the second applicant), had been even more radical. He had noted that the party should be firm and assert the interests of Pirin Macedonia. He had gone on to say that the prime minister should be presented with the following statement: "We have certain demands, or else we will secede Macedonia".

– The letter sent by Mr Kiril Ivanov on 20 July 1999 on behalf of the applicant party to the Open Society Institute in Budapest was also significant. In it he had expressed the wish that "Pirin Macedonia be given cultural, political and economic autonomy". He had also stated that "the human rights of the Macedonians in Pirin Macedonia [stood] higher than Bulgaria's national sovereignty". In the court's view, the fact that the applicant party's leadership had distanced itself from Mr Ivanov was not relevant, as this had happened only after the letter had reached the addressee and had become known to the public.

The Constitutional Court continued:

> "The facts set out above indicate that the [applicant party's] activity is focused around the Pirin region. It treats this part of the country's territory as non-Bulgarian land. In its view, it is foreign territory, given to Bulgaria for temporary administration

1. Treaty, concluded between Bulgaria, Greece, Montenegro, Romania and Serbia on 10 August 1913, which brought an end to the Second Balkan War (1912-13).
2. The coalition then in power in Bulgaria.

by virtue of an international treaty. [The applicant party's] activity is in that direction, going as far as secession of the territory in question from Bulgaria.

This is indicated by the calls for autonomy, which is expressly proscribed by Article 2 § 1 of the Constitution. It is also indicated by the maps of Macedonia issued and circulated [by the applicant party], by the definition of the Pirin region as part of Macedonia and by the interpretations of the Balkan War and the Bucharest treaty of 1913. Its culmination is the threat to secede the Pirin region if the party's demands are not met. Such a threat, when made by the chairperson of a party, could not only be in words. It is real and shows the positions of the party itself; moreover, it has been supported by its other leaders.

The actions in question constitute an activity aimed against the territorial integrity of the country within the meaning of Article 44 § 2 of the Constitution. Each and every one of them alone goes [against this Article's proscription].

The constitutional rule protects a value of the highest calibre, namely the territorial integrity of the Republic of Bulgaria, which Article 2 § 2 of the Constitution proclaims as inviolable. That is why [the proscription has been breached] even in the absence of effective damage to the protected value – the country's territory. An activity aimed against the territorial integrity, such as the one present here, is quite enough.

A political party which declares part of Bulgaria's territory as foreign and engages in actions for its secession is an unconstitutional party. It has no right to exist.

The Constitutional Court deems it necessary to underscore that its notion of unconstitutionality is in line with ... Article 11 § 2 of the European Convention for the Protection of Human Rights and Fundamental Freedoms. Its provisions allow restrictions of the freedom of association when necessary in the interests of national security, as here. There is no doubt that an activity aimed against the territorial integrity of the Republic of Bulgaria imperils its national security."

Three judges voted against the majority. In their dissenting opinions they, *inter alia*, expressed the view that the activities of UMO Ilinden should not be taken into account for the purpose of evaluating the applicant party's constitutionality. They went on to say that the Constitutional Court had erred in taking into account only certain statements of members and leaders of the applicant party. Its most fundamental activity since its registration was rather its normal and fully democratic participation in the local government elections in October 1999; however, the court had chosen to ignore that fact. Lastly, the dissenting judges expressed the opinion that the applicant party was being penalised for expressing its views, which it was entitled to convey, although they were shocking and probably offensive for the majority of Bulgarians.

B. Relevant domestic law and practice

1. The Constitution of 1991

Article 2

"1. The Republic of Bulgaria is a unitary country with local self-government. No autonomous territorial entities shall be allowed [on its territory].

2. The territorial integrity of the Republic of Bulgaria shall be inviolable."

Article 11 § 4

"No political parties shall be formed on ethnic, racial, or religious basis, nor parties which aim to accede to power by force."

Article 39

"1. Everyone is entitled to express an opinion or to publicise it through words, written or oral, sound, or image, or in any other way.

2. This right shall not be used to the detriment of the rights and reputation of others, or for the incitement of a forcible change of the constitutionally established order, the perpetration of a crime, or the incitement of enmity or violence against anyone."

In its interpretative judgment no. 7 of 1996 (реш. № 7 от 4 юни 1996 г. по конституционно дело № 1 от 1996 г., обн., ДВ брой 55 от 28 юни 1996 г.), in which it gave a binding interpretation of Article 39 of the Constitution, the Constitutional Court held, *inter alia*, that "speech which is deprived of constitutional protection is that which calls for a violent change of the constitutional order, i.e. for the destruction of the democratic constitutional order in a non-peaceful way, which may even lead to the suspension of the Constitution".

Article 44

"1. Citizens may freely associate.

2. Organisations the activities of which are directed against the country's sovereignty or territorial integrity or against the nation's unity, or which aim at stirring racial, national, ethnic or religious hatred, or at violating the rights and freedoms of others, as well as organisations creating secret or paramilitary structures, or which seek to achieve their aims through violence, shall be prohibited. ..."

Article 149 § 1

"The Constitutional Court shall:

...

5. rule on the constitutionality of political parties...”

2. The Political Parties Act of 1990

This Act, which was superseded by new legislation in March 2001, regulated the formation, registration, functioning and dissolution of political parties. Its relevant provisions read as follows:

Section 3(2)

“No political parties shall be formed:

1. which are aimed against the country’s sovereignty or territorial integrity, the nation’s unity, or the citizens’ rights and freedoms;

2. the aims of which are contrary to the Constitution and the laws of the country;

3. [which have] religious or ethnic basis or [aim to stir] racial, national, ethnical or religious hatred;

4. which advocate a fascist ideology or seek to achieve their aims through violence or other illegal means.”

COMPLAINT

The applicants complained under Article 11 of the Convention that UMO Ilinden – PIRIN had been declared unconstitutional and as a result dissolved. In particular, they submitted that this interference with their freedom of association had not been prescribed by law, as in its interpretative judgment no. 7 of 1996 the Constitutional Court had held that restrictions of freedom of speech – which, in the applicants’ view, applied *mutatis mutandis* to freedom of association – would only be justified if the speech in issue posed an immediate threat of violent overturning of the constitutional order and democracy. The applicants further submitted that the interference had not been necessary in a democratic society, as the Constitutional Court had failed to adduce relevant and sufficient reasons for dissolving the party.

THE LAW

In respect of their complaint that UMO Ilinden – PIRIN was declared unconstitutional and dissolved the applicants relied on Article 11 of the Convention, which provides, as relevant:

> "1. Everyone has the right ... to freedom of association with others...
>
> 2. No restrictions shall be placed on the exercise of [this right] other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. ..."

The Government invited the Court to declare the complaint manifestly ill-founded.

They firstly submitted that the applicant party's dissolution had been prescribed by law, namely the Constitution of 1991 and the Political Parties Act of 1990. By Article 149 § 1 (5) of the Constitution, the Constitutional Court had the power to rule on the constitutionality of political parties. The grounds for declaring the applicant party unconstitutional were Article 44 of the Constitution and section 3 of the Political Parties Act of 1990. Furthermore, the Constitutional Court had exercised its powers in a lawful manner.

The Government further argued that the interference complained of had pursued a wide range of legitimate aims: protecting national security, public safety, the territorial integrity of the country and the rights and freedoms of others.

In the Government's submission, the applicant party's dissolution had been due to a pressing social need and had been proportionate to the legitimate aims pursued. They argued that the applicants' complaint should be examined against a broader historical context and in the light of the Court's findings of fact in the case of S*tankov and the United Macedonian Organisation Ilinden v. Bulgaria* (nos. 29221/95 and 29225/95, ECHR 2001-IX).

The right to freely associate was not absolute and was subject to restrictions prescribed by law; otherwise its exercise could affect the interests of the society and of the State. The Court's case-law under Articles10 and 11 of the Convention indicated that the States enjoyed a wide margin of appreciation in choosing the means to restrict this right. The State's interference would be in line with the Convention only if the means employed were proportionate to the aim sought to be achieved, namely the protection of a social value of the highest calibre. An interference with the rights protected by the Convention could not be based on conjectures and formal reasons; in deciding to ban a political party or movement the authorities had to have regard mainly to their activity and their compliance

with the principles of democracy. The Constitutional Court had held, quite in line with these principles, that the constitutionality of a party should be assessed on the basis of its activities, not solely its constitution and programme.

The Constitutional Court had also examined the link between the applicant party and UMO Ilinden and whether there had existed a certain continuity between the two. The facts of the case indicated that the applicant party's beginnings could be traced back to 1990, when UMO Ilinden had been founded. Therefore, the Constitutional Court's finding that the applicant party was not a novel organisation and had a predecessor, UMO Ilinden, was logical. UMO Ilinden's split-up in 1994 had produced two organisations: UMO Ilinden – Democratic Action, headed by Mr Ivan Singartiyski (the second applicant), and UMO Ilinden, headed by Mr Kiril Ivanov, both leaders of the applicant party. In 1998 the two organizations had decided to merge and had applied for registration to the Sofia City Court. The Constitutional Court was right in taking into account the entire period of ten years preceding the applicant party's dissolution for assessing its constitutionality. It was beyond doubt that declaring a party unconstitutional solely on the basis of its leaders' statements would be wrong. However, in the instant case the conclusion that the applicant party was unconstitutional was made on the basis of evidence about a long series of incidents outlined by the Constitutional Court in its judgment. The applicant party's activities could be described as promoting separatist ideas, calls for autonomy of the Pirin region, dissemination of maps depicting Bulgarian territory included in the envisaged territory of Macedonia, describing the Pirin region as part of Macedonia, making open invectives and grave allegations against the Bulgarian State, making threats of seceding the Pirin region if the party's demands were not fulfilled, etc.

The Government submitted that the very fact that after its registration the applicant party could effectively strive towards power and thus get hold of the mechanisms to achieve its separatists ideas posed an immediate threat to national security, the State's sovereignty, the country's territorial integrity and the nation's unity. This threat was much graver than that stemming from the holding of a meeting. In the light of all the evidence, the Constitutional Court's findings that the applicant party treated the Pirin region as non-Bulgarian land and that its activity was going as far as attempting the secession of this territory from Bulgaria were fully warranted.

The Government submitted that the right of the followers of UMO Ilinden and of the applicant party to identify themselves as Macedonians was fully secured, as evidenced by the 2001 census: 5,071 persons had declared themselves as Macedonians. Furthermore, after the local government elections in October 1999 the applicant party had won two

mayor's posts and three municipal councillor's posts. Despite the party's dissolution, the persons occupying these posts had remained in office.

In sum, the Government were of the view that the interference with the applicants' freedom of association had been provided for by law and necessary in a democratic society for the protection of national security and public safety, the prevention of disorder or crime and the protection of the rights and freedoms of others.

The applicants submitted that interferences with the rights protected by Articles 10 and 11 of the Convention were justified only when the exercise of these rights endangered the principles of democratic government. In the Court's hitherto case-law such interferences had been considered warranted only in two types of cases: when there was threat to use violence and when the political project put forward was incompatible with the rules of democracy. Other political action enjoyed the full protection of the Convention. In particular, with regard to separatism, as long as such a policy was advanced within the bounds of the democratic process, there was no reason for banning it. The territorial integrity of a State was open to debate as any other issue of public concern. This had been recently confirmed by the Court in its judgment in the case of *Socialist Party of Turkey (STP) and Others v. Turkey* (no. 26482/95, 12 November 2003).

The applicants argued that UMO Ilinden – PIRIN's dissolution had not been necessary in a democratic society, because it was a democratic political party. There was nothing in its activity or in the activities of its leaders of members which could suggest hostility towards the democratic form of government. Nor had it made any calls for the use of violence.

The applicants conceded that the facts on which the Constitutional Court had grounded its judgment were true. They further agreed that certain weight could be given to past statements of members and leaders of the applicant party. They submitted however that the Constitutional Court had given undue weight to these facts, while in the same time had disregarded a number of other facts – such as the party's participation in the local government elections in October 1999 – which indicated that it had in fact rejected a separatist agenda.

In reality, the applicants submitted, UMO Ilinden – PIRIN had never resolved to pursue separatist activities. It had merely promoted the rights of ethnic Macedonians living in Bulgaria and had thus raised the issue of regional autonomy. While some of its members may have expressed secessionist views in the past or even at present, there had never been an official party resolution to that effect and this was not the party's policy.

Even assuming that separatism was the party's policy, as deemed by the Constitutional Court on the basis of the statements of members of the applicant party prior to its founding, that would still not constitute sufficient grounds for its dissolution. These statements had not expressed hostility towards the principles of democracy, nor had there been any calls for the

use of violence. Quite the contrary, a number of the statements cited by the Constitutional Court had been permeated by democratic values.

With regard to the Government's averment that the very fact that the applicant party could participate in elections created a high risk that it would put into practice its separatist ideas, the applicants stated that the possibility to participate in elections could not under any circumstances justify limitation of political rights. Nothing in the party's activities suggested any threat to the rules of democracy.

The applicants submitted that the dissolution of UMO Ilinden – PIRIN had not been based on relevant and sufficient reasons. The Constitutional Court had merely established that the party had advocated separatist ideas and had held that this was sufficient to ban it, without embarking on any analysis of the proportionality of this measure. Thus, that court had not considered whether there had existed sufficient evidence that the party was advocating the use of violence or other undemocratic means to achieve its goals. The court has also failed to address the question whether the party accepted or rejected the principles of democracy. Instead, its judgment had focused on irrelevant issues such as nationality, ethnicity and the proper interpretation of historical events.

The applicants concluded that that there had existed no pressing social need justifying the dissolution of UMO Ilinden – PIRIN, and that the reasons given by the Constitutional Court for ordering this measure had not been relevant and sufficient. Therefore, the party's dissolution could not be considered necessary in a democratic society.

The Court considers, in the light of the parties' submissions, that the complaint raises serious issues of fact and law under the Convention, the determination of which requires an examination of the merits. The Court concludes therefore that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 of the Convention. No other ground for declaring it inadmissible has been established.

For these reasons, the Court unanimously

Declares the application admissible, without prejudging the merits of the case.

Søren NIELSEN
Registrar

Christos ROZAKIS
President